

The examination is being carried out on the **following application documents**

Description, Pages

1-38 as annexed to the Int. Prel. Examination Report

Claims, Numbers

1-15 filed with entry into the regional phase before the EPO

Drawings, Sheets

1/4-4/4 as published

1. Reference

The following documents have been cited in the international search report; the numbering will be adhered to in the rest of the procedure.

- D1 US 2010/273895 A1 (STINCHCOMB AUDRA LYNN [US] ET AL) 28 October 2010 (2010-10-28)
- D2 STINCHCOMB A L ET AL: "Human skin permeation of [Delta] 8-tetrahydrocannabinol, cannabidiol and cannabinol", PHARMACEUTICAL AND CLINICAL RESEARCH, JOHN WILEY & SONS LTD, LONDON, GB, vol. 56, no. 3, 1 March 2004 (2004-03-01), pages 291-297, XP009150837, ISSN: 0022-3573
- D3 SMITH N ET AL: "Complementary and alternative medicine for psoriasis: A qualitative review of the clinical trial literature", JOURNAL OF THE AMERICAN ACADEMY OF DERMATOLOGY, MOSBY, INC, US, vol. 61, no. 5, 1 November 2009 (2009-11-01), pages 841-856, XP026739620, ISSN: 0190-9622, DOI: 10.1016/J.JAAD.2009.04.029 [retrieved on 2009-08-06]

2. Amendments

The amendment filed with the letter dated 02.03.2022 introduces subject-matter which extends beyond the content of the application as filed, contrary to Article 123(2) EPC. The amendment concerned is the following:

2.1 No basis could be found for at least the new claims 13 and 14.

The applicant did not indicate a basis either.

2.2 The amendments also go into all kind of directions.

For example, the amendments introduced with the Chapter II demand have now been deleted again.

The applicant is respectfully reminded of the examining divisions discretion to admit amendments in Rule 137(3) EPC.

3. Novelty

The subject-matter of claims 1-15 is new within the meaning of Article 54(1) and (2) EPC.

4. Inventive Step

The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of claims 1-15 does not involve an inventive step within the meaning of Article 56 EPC.

4.1 **Document D1** (US 2010/0273895) discloses a topical gel comprising 4%wt pure CBD, 0.5% isopropyl myristate (IPM) as skin permeation agent, 40% ethanol, 1.5% Carbopol as thickening agent and water to add to 100% (table 28).

4.2 Present claim 1 differs over D1 in that the amount of ethanol is 10-30%wt.

4.3 The examples of the application compare to placebo-formulations, but do not compare to the formulations of D1. The examples also do not show any unexpected effect regarding the amounts of ethanol.

4.4 The problem to be solved is to provide an alternative topical CBD gel.

4.5 The solution offered by claim 1 to the problem posed is obvious for the following reasons.

D1 alone discloses ethanol in a range of 10-30% (§81) as a suitable alternative for the formulations exemplified.

4.6 The same arguments apply to the lacking inventiveness of claims 2-15 as previously reasoned in detail in the PCT phase.

D1 discloses CBD as a pure substance, rendering claim 2 a non-distinguishing features.

The formulations of D1 are oil free, rendering claim 3 obvious.

For claim 4, the efficacy of 10-25%wt NaCl (and also dead sea salt) as a complementary treatment against e.g. psoriasis is well known to the skilled person, as documented in review article **document D3** (Smith et al), e.g. table 3.

Claims 5-8 disclose commonly known excipients.

Claims 9-12 disclose features known from D1.

Claims 13-15 disclose the formulations more narrowly, without any unexpected benefit. These claims are an arbitrary aggregation of features without the examples of the application disclosing any effect for any of the features.

4.7 Should the Applicant recognize an improved effect over the prior art, the nature of the comparison with the closest state of the art must be such that said effect is convincingly shown to have its origin in the distinguishing feature. The discussion concerning this effect is to be based with reference to the present application, citing the appropriate passages.

Any reasoning for the presence of an inventive step should be given using the problem-solution approach.

According to the problem solution approach, all alternatives of a claim should solve the technical problem underlying the claimed invention.

Form example, the medical uses are known from the prior art. The present application does not demonstrate any unexpected effect with regard to the medial uses, even when specific formulations are used, such as those of present claims 13,14.

4.8 Also **document D2** (STINCHCOMB A L ET AL) may become relevant for inventive step assessment. D2 discloses skin permeability of cannabidiol (whole document).

Datum
Date 26.01.2023
Date

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Sheet 4
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Anmelde-Nr:
Application No: 20 757 830.3
Demande n°:

5. Further Objections / Remarks

5.1 The third-party observation received on 04.10.2022 pursuant to Art. 115 EPC are relevant and have been considered for this communication.

5.2 It is respectfully noted that the next office action is most likely summons to oral proceedings.